

Tentative Rulings for July 20, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND PRODUCTION OF DOCUMENTS BY AC PALM DESERT CORPORATION, JOHN WHITE

Tentative Ruling: Matter taken off calendar by moving party per declaration filed July 14, 2026 as result of counsel meeting and conferring and resolving the instant disputed discovery issue(s).

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500832	MELENDREZ VS UNITED GROUND EXPRESS, INC.	MOTION TO COMPEL DEFENDANT UNITED GROUND EXPRESS, INC. TO PROVIDE FURTHER RESPONSES, WITHOUT OBJECTION, TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY ANGELIQUE MELENDREZ

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is an employment law discrimination action filed February 5, 2025 by Plaintiff Angelique Melendrez against Defendants United Ground Express, Inc., United Airlines, Inc., Donald Miller and Kevin Tomas, which alleges 10 causes of action for 1) discrimination in violation of FEHA, 2) hostile work environment, 3) retaliation in violation of FEHA, 4) failure to provide reasonable accommodation, 5) failure to engage in the interactive process, 6) failure to prevent discrimination, harassment, and retaliation, 7) wrongful termination in violation of public policy, 8) IIED, 9) whistleblower retaliation in violation of Labor Code section 1102.5, and 10) negligent hiring, supervision, and retention.

Plaintiff Melendrez now moves the court to compel Defendant United Ground Express, Inc. to provide further responses to Requests for Production (Set One) numbers 41, 48, 69, 70, 75 and 80, without objection. Melendrez asserts that the responses provided were incomplete, evasive and non-code compliant.

In opposition, United Ground Express asserts that the motion is untimely, the memorandum is confusing as the memorandum only refers to a single deficient response to Form Interrogatory 201.1(d) and subsection D entitled discovery sought is blank. Further, United asserts that Plaintiff only vaguely asserts that the responses are incomplete, evasive and insufficient without ever stating why. In addition, United asserts its objections and responses were justified and appropriate and therefore the motion should be denied and Defendant awarded sanctions of \$4,329.50 as the prevailing party.

Motion to Compel Further Response(s)

Timeliness of the Motion

On March 28, 2025, Plaintiff served Defendant with Requests for Production (Set One), which had a total of 107 document requests. Defendant served Plaintiff with its responses to Requests for Production (Set One) on June 24, 2025. Defendant's counsel's declaration declares that on September 24, 2025, Plaintiff initiated meet-and-confer efforts regarding Defendant's discovery responses and Defendant served supplemental responses on February 6, 2026, but did not supplement Request for Production Nos. 41, 48, 69, 70, 75 or 80.

CCP section 2031.310(b)(3)(c) provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (CCP §2031.310(b)(3)(c).) Therefore, without the written agreement of the parties the last day to file this motion was March 23, 2026.

However, on March 16, 2026, the parties did agree to a mutual deadline to bring a Motion to Compel by April 3, 2026, which agreement is verified by attached Exhibit 1 a copy of the correspondence. This motion was not filed until April 21, 2026. Accordingly, the motion is untimely.

An untimely motion to compel further production of documents is jurisdictional in the sense that it renders the court without authority to rule on the motion to compel. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th1403.) Accordingly, the court must deny the motion as untimely as it does not have the authority to rule on the merits of the motion.

Sanctions

Code of Civil Procedure section 2030.300(d) provides that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Defendant requests sanctions against Plaintiff in the amount of \$4,329.50. Had Plaintiff properly met and conferred they likely would have realized the instant motion was futile because of the untimeliness. Sanctions are granted in the reduced, but reasonable amount of \$1,829.50 payable to Defendant by Plaintiff and Plaintiff's counsel jointly and severally within 30 days of this order becoming final.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503770	CANCHOLA VS CANCHOLA	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION BY SANTIAGO CANCHOLA

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

This is a partition action filed May 20, 2025 by Plaintiff Santiago Canchola against Defendants Carlos Canchola and all persons claiming an interest in the property. The Complaint alleged three causes of action for 1) partition, 2) accounting, and 3) declaratory relief. The court subsequently

granted Plaintiff leave to file an amended complaint. On November 13, 2025, Plaintiff filed his First Amended Complaint alleging 2 cause of action for partition and causes of action for accounting and declaratory relief.

On January 20, 2026, Plaintiff moved the court for an order for appraisal under CCP section 874.311, et seq. On April 27, 2026, the court denied the motion.

Now Plaintiff moves the court for an interlocutory judgment of partition, pursuant to CCP section 872.720(a) and *Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143. Santiago asserts that there is no credible dispute that he is the holder of a 50% interest in the property and that his absolute right to partition has not been waived. Therefore, Santiago asserts that entry of an interlocutory judgment is mandatory.

Defendant Carlos' response to the motion is that he does not oppose entry of an interlocutory judgment that determines the parties hold equal, undivided 50% interests as tenants in common and that Plaintiff has a right to partition as those points are not in dispute. Carlos states that he only opposes the implied relief sought that the interlocutory judgment should order, presuppose, or prejudge partition by sale. Carlos further asserts that the motion only establishes the right to partition, not the manner of partition, which must either be in kind or the manner of partition reserved for the PRPA process.

In reply, Santiago asserts that it is undisputed that the Partition of Real Property Act applies and has rigid rules which provide that if the cotenants do not agree on the value or mechanism to be used, the court must determine the fair market value based upon an appraisal. After which appraisal the court then determines whether to complete partition by sale or in kind based upon the requests of the parties.

Requests for Judicial Notice (RJN)

Plaintiff Santiago requests that the court take judicial notice of the following:

1. Grand Deed, recorded in the Official Records of Riverside County Recorder's Office □ Document No. 1992-0122343. A copy of the document is attached hereto and incorporated by reference as Exhibit "1." GRANTED

Evidentiary Objection(s)

Plaintiff filed objections to the declaration of counsel in support of the response. SUSTAINED

Partition Action

A partition action is an equitable proceeding governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596.) The purpose of a partition is "to sever the unity of possession" and divide the parties' respective interests and proceeds. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) The statutory scheme establishes a mandatory, two-step process: first, a trial to determine the parties' interests and the right to partition, memorialized in an interlocutory judgment; second, the implementation of that judgment through the physical division or sale of the property. (See *Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142; *LEG Investments v. Boxler*, supra, 183 Cal.App.4th 484; *Grant v. Murphy* (1897) 116 Cal. 427.)

The first stage requires the court to adjudicate the parties' interests and the right to partition. The interests of all parties "may be put in issue, tried, and determined in the action." (CCP §872.610.)

Critically, “[a]t the trial, the court shall determine whether the plaintiff has the right to partition.” (CCP §872.710 (a).)

If a plaintiff has the right to partition, then the court “shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (CCP §872.720(a).) This interlocutory judgment is an appealable determination of the parties’ respective rights and the method of partition. (*Grant v. Murphy*, supra, 116 Cal. at 431-32.) The entry of this judgment is a mandatory prerequisite before the court can proceed to the second stage of ordering a sale or division. (*Summers v. Superior Court*, supra, 24 Cal.App.5th at 143 [holding that a court may not order the manner of partition before it determines the ownership interests].)

The Partition of Real Property Act (the “Act”) supplements the existing partition statutes. (CCP §874.311 et seq.) The Act applies to partition actions filed on or after January 1, 2023, involving tenancy-in-common property where no binding partition agreement exists. (CCP §§874.311(b), (c).) Therefore, the PRPA governs this action as it was filed after January 1, 2023, the parties are tenants in common, and no binding partition agreement exists. (CCP §874.311.)

The Act supplements, but does not override, the mandatory two-step procedural requirements of a partition action, including the necessity of an interlocutory judgment. (CCP §874.313 [stating the Act supplements Title 10.5 and controls only over inconsistent provisions].) Therefore, the first step of entry of an interlocutory judgment is still required before any form of partition can be ordered.

Here, the evidence and the parties are in agreement that they each own 50% of the property as co tenants. Accordingly, the court grants the motion and enters an interlocutory judgment determining that Plaintiff and Defendant both own 50% of the property as co-tenants and entitled to partition, the manner of which is not before the court in the instant motion.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507350	D'SOL VS SELECT PORTFOLIO SERVICING, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED SET NO. ONE, PROPOUNDED TO DEFENDANT SELECT PORTFOLIO SERVICING, INC. (122 REQUESTS) AND DEFENDANT WILMINGTON SAVINGS FUND SOCIETY, FSB (120 REQUESTS). BY LUNA D'SOL

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff, a homeowner, has brought this action for wrongful foreclosure of her residential property against the foreclosing beneficiary and its servicer, and the trustee under the deed of trust. Plaintiff is pro per. The crux of Plaintiff’s Complaint is that, despite wiring of funds sufficient to cure her default on her mortgage payment and fully reinstate her loan, Defendants nevertheless completed a foreclosure sale of her property and caused a trustee’s deed upon sale to be recorded. As a result of Defendants’ alleged misconduct, Plaintiff alleges that the wrongfully recorded trustee’s deed upon sale clouded title of her property and that she sustained damages in the form of loss of her home, adverse credit rating, and emotional distress.

Plaintiff brings the instant motion for an order to deem requests for admissions admitted. Plaintiff served Requests for Admission on Select Portfolio Servicing, Inc. and Wilmington Savings Fund Society, FSB, dba Christiana Trust on January 23, 2026. Plaintiff agreed to extend Defendants' deadline to respond to the RFAs until March 24, 2026. On March 24, 2026, Defendants each served their responses. The responses consisted of objections to each of the RFAs.

Plaintiff argues since the responses only contained an attorney signature and did not include a party verification, they were tantamount to no response at all. Thus, Plaintiff now asks the court for an order deeming the requests for admissions admitted.

Defendants oppose the motion. Defendants argue Defendants timely served attorney-signed responses that included objections to every request. Defendants argue the motion is procedurally improper as it seeks a single deemed-admitted order against two separate defendants. Defendants argue Plaintiff's exclusive remedy is a motion to compel further responses under CCP §2033.290.

Request for Admission(s)

When responding to a Request for Admission, the responding party may serve objections to a particular request. (CCP §2033.210(b).) The party to whom RFAs were directed must sign the response under oath. The party's attorney must also sign a response that contains an objection. If the response consists entirely of objections, then only the attorney's signature is necessary. (CCP §2033.240(a), (c).) If the response contains both answers and objections, there is no need to verify that portion containing objections. (*Food 4 Less Supermarkets, Inc. v. Sup. Ct. (Fletcher)* (1995) 40 Cal.App.4th 651, 657.)

A "hybrid" response is one that contains objections and other statements. "The verification requirement for a response which contains matter other than objections operates to support the *other* statements in the response. The objections themselves do not require a verification in order to be preserved." (*Blue Ridge Ins. Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 344 (emphasis in original).)

Failure to timely respond to RFAs does not automatically result in deemed admissions. Rather, the propounder of the RFAs must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (CCP §2033.280(b).) If timely responses have been served but the requesting party believes those responses are deficient, the remedy is a motion to compel further answers under CCP §2033.290.

Here, Defendants served timely hybrid responses that contained both objections and responses claiming Defendants were unable to admit or deny the requests. The responses were signed by Defendants' attorney but no party verifications were provided. Since the responses were timely and contained objections, the objections have been preserved. Contrary to Plaintiff's argument, Defendants have served a valid response in the form of objections. This is not a proper basis on which to bring a motion to deem the requests for admissions admitted.

Furthermore, Defendants properly argue the motion is procedurally improper. The motion seeks an order deeming admissions against two separate defendants for different sets of discovery served on those defendants. CCP §2033.280(b) permits a party that served requests for admissions to file a motion deeming matters admitted against "a party to whom requests for admissions are directed." There is no provision in the Code of Civil Procedure that permits a moving party to bring one motion against two defendants who were served with separate discovery requests. Since the motion must be denied on the merits, this procedural issue is not dispositive.